Persuadability and LLMs as Legal Decision Assistants

Instructions for Research Assistants

You will be working on a project examining the persuadability of large language models in legal decision-making or decision-assistance roles.

You will undertake two tasks. First, evaluating a sample of legal submissions / legal arguments to judge their persuasiveness. And second, counting and classifying distinct arguments/points within submissions.

Task 1 – Judging Persuasiveness

For this first task, you will be given an excel file formatted with a series of dispute scenarios, followed by two submissions / arguments, both arguing for the same side of the relevant dispute. (i.e. you will get either two arguments for the first party or two arguments for the second party.) Be careful with the formatting in this document – depending on the amount of text in a cell you may sometimes need to double-click it to display the full text.

Your task is simply to read the two arguments and determine which has done a better job of arguing for the relevant side. Put in other terms, which argument do you think would be more likely to persuade a judge? You will see a space immediately after each pair of arguments where you should record which argument (1 or 2) you think is more persuasive.

Task 2 – Identifying and Classifying Arguments

For this second task, you will be given an MS word file with a set of submissions / arguments. Some of these may overlap with the arguments you have worked on for the first task, while others will be different. Your task is to identify and classify types of arguments in these submissions.

For each submission you will, first, identify how many distinct arguments appear in the submission, and second, classify these arguments.

You should first carefully review each submission to identify how many distinct arguments appear in it. An argument for these purposes is a freestanding point which directly supports the overall position being advocated.

You should then consider each of those arguments to determine which of the argument types below best fits that argument. If there are elements of multiple argument types in a given argument, you should classify it based on which argument type is most significant. Significance should be judged by the number of words devoted to the relevant argument type.

You will be asked to report the total number of arguments, as well as the argument type of the first argument in each submission, the last argument in each submission, and the argument type that is most significant in each submission. Significance should be judged

by the number of words devoted to the relevant argument type within the submission as a whole. The relevant argument types are as follows.

1. **TEXT**
   These arguments rely on the ordinary meaning of the text of the relevant legal norm (whether that be a statute, a constitutional provision, or an established common-law formulation). They may include explicit discussion of the meaning of those words. However they also include simple statements of the norm that claim that the facts do (or do not) fall under its terms, or claims about the "clear" or "explicit" terms of the norm. The key feature of these arguments is that they appeal to the words used, treating these as capable of resolving the dispute.
2. **PURPOSE**
   These arguments focus on the purpose or goal of a given norm (whether that be a statute, a constitutional provision, or an established common-law formulation). They argue that a particular outcome reflects what the legislator (in the case of a statute) or other author intended (or should have intended) to achieve through the relevant norm. They also include arguments about the policy implications of a particular interpretation or decision, or the substantive (un)fairness or (in)justice of the outcome, whether for the parties to the dispute or others who are similarly situated.
3. **SYSTEMIC**
   These arguments link the legal issue in dispute to broader features of the relevant legal regime, or of the legal system as a whole. They include arguments pointing to the wider statutory context, drawing parallels or contrasts with other statutory provisions, or highlighting how different norms interact. They also include arguments that appeal to established principles of law to clarify the matter in dispute, and arguments drawing analogies to other norms or principles in order to clarify and apply the norms in dispute.
4. **PRECEDENT**
   These arguments focus on the ways that relevant norms have been established or interpreted in past decisions in order to argue that the same approach should be taken in the present dispute. This may include reference to specific named past decisions, or more general reference to the way questions have been resolved by courts in the past.

Please think carefully about how you identify and classify arguments.

In the MS word file provided you will see a set of columns to the right of each submission where you should record your argument count and classification. In the first column you should record the number of arguments identified in the relevant submission. In the next three columns you should record the first, last, and most significant argument types. Argument types should be recorded by number, per the numbering system above. (i.e. 1=TEXT, 2=PURPOSE, 3=SYSTEMIC, 4=PRECEDENT)